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File No.: EXP202208917

RESOLUTION No.: R/00055/2023

In view of the complaint filed on July 20, 2022, with this Agency by Mr. A.A.A., against GOOGLE LLC, for not having duly addressed his request to exercise the rights established in the GDPR.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On July 11, 2022, Mr. A.A.A. (hereinafter, the complainant) exercised the right to erasure concerning the URLs transcribed in his complaint, against GOOGLE LLC with Tax ID 770493581 (hereinafter, the respondent), and his request, as stated by the complainant, did not receive the legally established response.

The complainant points out that on 07/11/2022 he exercised the right to be forgotten before the respondent and that it has not been satisfactorily addressed, given that, upon entering his name and surname, his data remains linked to web pages related to selection processes that have already expired.

The complainant's request refers to the removal, from the search results page, of the following URLs:

1. ***URL.1
2. ***URL.2
3. ***URL.3
4. ***URL.4
5. ***URL.5
6. ***URL.6
7. ***URL.7
8. ***URL.8
9. ***URL.9
10. ***URL.10
11. ***URL.11

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed with the AEPD, consisting of transferring them to the Data Protection Delegates designated by the controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the respondent entity for analysis and to respond to the complainant and this Agency within one month.

The Data Protection representative of the respondent states that the exercise of the complainant's right was duly denied by email dated July 12, 2022. However, it is reported that, once the complaint was received, his request was re-examined and it was verified that, of the eleven URLs he intended to block, URLs 4 and 10 do not appear in the search results when searching by his name.

Regarding the remaining nine URLs, the respondent considers that the information to which they refer relates to his professional activity as it concerns publications in selection processes of certain municipalities and two publications in the Official Bulletin of the Province of Alicante regarding the granting of aid for professional retraining and a notice with the final list of admitted candidates in a selection process.

Therefore, it is indicated that blocking the questioned URLs would constitute an interference with the legitimate interest of the public interested in accessing that information. Furthermore, it is indicated that the processing of the complainant's data is necessary for the exercise of the right to freedom of expression and information.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's requests were satisfied. Consequently, on October 17, 2022, for the purposes provided for in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for Data

Protection agreed to admit the complaint for processing and informed the parties that the maximum period to resolve this procedure, which is understood to have been initiated by said admission agreement, will be six months.

The aforementioned agreement granted the respondent entity a hearing process, so that within ten working days it could present any allegations it deemed appropriate.

This entity summarized the following allegations:

Regarding the 11 claimed URLs, it has been verified that URL 8 does not appear among the results when searching with the complainant's name.

Regarding the remaining ten URLs, the content of the web pages to which the disputed search results refer has been re-examined, and the initial decision has been reconsidered, proceeding with the blocking requested by the complainant.

FOURTH: After examining the allegations presented by the respondent, they are subject to transfer to the complainant, so that, within fifteen working days, he may formulate any allegations he considers appropriate:

The complainant points out that, in the following search results, the following URLs continue to appear when entering his name and surname:

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12. ***URL.12

13. ***URL.13

14. ***URL.14

15. ***URL.15

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of the Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as handling complaints filed by a data subject and investigating the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, the complaint was forwarded to the responsible entity for analysis, requiring a response to this Agency within one month and proving that the necessary response was provided to the complainant, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

The purification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, as its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be purified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that the present procedure duly restores the guarantees and rights of the complainant.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

FOURTH: The right to be forgotten is contemplated in Article 17 of the GDPR, as well as in Article 93 of the LOPDGDD, regarding the right to be forgotten in Internet searches, which states, in its paragraph 1, the following:

“1. Everyone has the right to have search engines on the Internet remove from the lists of results obtained following a search conducted based on their name the links published that contained information relating to that person when they are inadequate, inaccurate, not relevant, not up-to-date, or excessive, or have become such due to the passage of time, taking into account the purposes for which they were collected or processed, the time elapsed, and the nature and public interest of the information.”

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Similarly, this procedure must be followed when the personal circumstances invoked by the affected party demonstrate the prevalence of their rights over the maintenance of links by the Internet search service.

This right shall persist even when the retention of the information published on the website to which the link directs is lawful and it has not been previously or simultaneously deleted by the same.

As stated in the Supreme Court ruling of January 11, 2019, “This fundamental right to be forgotten is not an unlimited right - constitutional doctrine holds - because, although the Constitution does not expressly establish specific limits, based on the principle of the unity of the Constitution, the limits

derived from the respect for other fundamental rights apply, among which the freedom of information proclaimed by Article 20 of the Constitution is of particular relevance.”

Regarding the nature of the search engine as a data controller, it should be noted that a search engine is a tool that facilitates Internet users' access to certain web pages. To do this, the tool accesses a list of previously indexed links and offers the user a list of web addresses that refer to pages containing the words selected by the user.

The ruling of the Court of Justice of the European Union of May 13, 2014 states the following:

Paragraph 28: “By exploring the Internet in an automated, constant, and systematic manner in search of the information published there, the operator of a search engine collects such data, which it extracts, records, and subsequently organizes within the framework of its indexing programs, retains on its servers, and, where appropriate, communicates and facilitates access to its users in the form of search result lists. Since these operations are explicitly and unconditionally covered by Article 2(b) of Directive 95/46, they must be classified as processing in the sense of that provision, regardless of whether the search engine operator also performs the same operations with other types of information and does not distinguish between these and personal data.”

Paragraph 33: “However, the search engine operator is the one who determines the purposes and means of this activity and, thus, of the processing of personal data that it carries out within this framework and, consequently, must be considered responsible for such processing under the aforementioned Article 2(d).”

Paragraph 35: “On this particular matter, it should be noted that the processing of personal data carried out within the framework of a search engine's activity is distinct from that carried out by website publishers, which consists of displaying such data on a webpage, and is added to it.”

Consequently, the Court of Justice considers that the search engine operator is responsible for the processing of data by determining the purposes and means of its activity.

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Regarding the possibility of exercising the right to erasure before the Internet search engine without going to the website operator, the Court of Justice of the European Union, in its Judgment of May 13, 2014, (case C-131/12), stated:

“(…) the processing of data (…) carried out by the operator of a search engine may significantly affect the fundamental rights to respect for private life and to the protection of personal data when the search carried out using that search engine is conducted based on the name of a natural person, since such processing allows any internet user to obtain, through the list of results, a structured view of the information relating to that person that may be found on the Internet, which potentially affects a multitude of aspects of their private life, which, without that search engine, would not have been interconnected or could only have been interconnected with great difficulty, thus allowing the establishment of a more or less detailed profile of the person in question. Furthermore, the effect of the interference with the rights of the data subject is multiplied due to the significant role that the Internet and search engines play in modern society, which confer a ubiquitous character to the information contained in such a list of results (see, in this regard, the judgment in eDate Advertising and others, C-509/09 and C-161/10, EU:C2011:685, paragraph 45).”

“The Court of Justice maintains that the removal of links from the list of results based on the name of the natural person affected by the dissemination of the news could have repercussions on the legitimate interest of internet users potentially interested in accessing the information in question, so it is necessary to seek a fair balance between this interest and the fundamental right of the affected person in accordance with Articles 7 and 8 of the Charter of Fundamental Rights of the European Union.”

“(…) to respect the rights established by these provisions, provided that the requirements set out therein are genuinely met, the operator of a search engine is obliged to remove from the list of results obtained after a search conducted based on the name of a person links to web pages published by

third parties that contain information relating to that person, even in the event that this name or this information is not removed prior to or simultaneously from these web pages, and, if applicable, even if the publication on such pages is lawful in itself.”

Consequently, the processing of personal data carried out by the operator of a search engine allows for a “name” to yield a list of results that provide information about a person that may affect their private sphere. Once the data subject has submitted their request for erasure of their personal data to the search engine, it must examine it and proceed, if applicable, to the removal of the specific links from the list of results, without the need to first or simultaneously go to the website operator.

Furthermore, it follows from the above that the conflicting rights and interests must also be weighed in each specific case in order to determine which right prevails.

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For the purpose of conducting the balancing exercise, it should be recalled the Judgment of the Supreme Court, number 545/2015, of October 15, 2015, which states that “the so-called 'right to digital oblivion', which is a specification in this field of the rights derived from the quality requirements for the processing of personal data, does not protect the ability of individuals to construct a past to their liking, forcing web page editors or search engine managers to delete the processing of their personal data when associated with facts that are not considered positive. It also does not justify that those who publicly expose themselves can demand that a curriculum be constructed to their liking, controlling the discourse about themselves, eliminating negative information from the Internet, 'positioning' the results of Internet searches at their whim, so that the most favorable ones occupy the top positions. If this thesis were accepted, it would severely disrupt the information mechanisms necessary for citizens to make their decisions in the democratic life of a country.”

It is also relevant the doctrine collected in the judgment of the National Court, of June 21, 2019, which specifies, in its fifth legal basis, the following, in relation to information related to the professional life of the interested party:

“(…) General doctrine that is also developed in paragraphs 81, 93, and 97 of the repeated Judgment of the CJEU - of May 13, 2014 - indicating that, notwithstanding that prevalence, a fair balance must be sought between the legitimate interest of internet users in having access to information in a search concerning the name of a person and the fundamental rights of that person, and it may result that, for specific reasons such as the role played by the aforementioned interested party in public life, the interference with their fundamental rights is justified by the preponderant interest of the public in having access to the information in question as a result of this inclusion.

In the case at hand, entering into the balancing of the rights and interests at stake, it must first be taken into account that it refers to the professional life of the claimant, a businessman, and not to personal life, as this is very relevant to modulate the intensity that the protection of the right regulated in art. 18.4 of the Constitution deserves, as this Chamber has pointed out in the Judgments of May 11, 2017 - appeal no. 30/2016 - and June 6, 2017 - appeal no. 1.797/2015.”

In this regard, it is appropriate to refer to the guidelines of the Working Group of the 29th on the right to be forgotten (Guidelines on the implementation of the Court of Justice of the European Union Judgment on “Google Spain and inc v. AEPD and Mario Costeja” C-131/12), which state: “There is a basic difference between a person's private life and their public or professional life. The availability of information in search results becomes more acceptable the less information it reveals about a person's private life (...) information is more likely to be relevant if it is related to the professional life of the interested party, but it will depend on the nature of the interested party's work and the legitimate interest of the public in having access to that information through a search by their name (...)”.

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When the information refers to private individuals, the Constitutional Court has declared that “even when the news concerning the subject matter is of public interest, not all its content is protected by the freedom of information—in this case, freedom of expression—such that the transmission of those facts that, within the news, affect the honor or privacy of the concerned individual can be deemed disproportionate and revealed as ‘manifestly unnecessary and irrelevant to the public interest of the information’” (SSTC 105/1990, of June 6, FJ 8, and 121/2002, of May 20, FJ 5).

Furthermore, in order to assess the public relevance of the matter, it must be analyzed whether the published information remains of general interest due to the time that has elapsed. On this issue, the National Court declared in its ruling dated November 8, 2017, the following: “moreover, unlike the first link, an excessive amount of time has not passed between the date on which the cancellation request was made to the search engine and the date of the publication of the news. Indeed, since the date the news was published (August 2011) and the date on which the right to cancellation was exercised (July 2015), not even four years have passed, and the fact that it is an archive, given the terms that apply in this case and as previously stated, does not affect this conclusion.”

In this regard, the aforementioned Judgment of the Court of Justice of the European Union states in paragraph 93 the following: “even an initially lawful processing of accurate data may, over time, become incompatible with that Directive when these data are no longer necessary in relation to the purposes for which they were collected or processed. This is particularly the case when they are inadequate, irrelevant, or no longer pertinent, or are excessive in relation to these purposes and the time elapsed.”

Regarding the criterion of “the public relevance of what is disseminated,” the Judgment of the Constitutional Court 89/2022, of June 29, 2022, establishes in Legal Basis 5, section A), that “(...) It should be noted that the concept of ‘matters of public relevance’ is a concept that this court has been considering as a prerequisite to assess the preponderant value of the public freedoms of information and expression of art. 20 CE, against the right to honor and personal and family privacy of art. 18.1 CE (among others, SSTC 49/2001, of February 26, FJ 6, and 216/2013, of December 29, FJ 5). This criterion is also used, as the appellant indicates, in STC 58/2018, in which we spoke of the ‘right to freely communicate truthful information [art. 20.1 d) CE], which protects the dissemination of facts that deserve to be considered newsworthy because they refer to matters of public relevance that are of general interest due to the subjects they concern or the individuals involved’ (FJ 6).

(...)

To determine whether there exists such a superior public interest, it is appropriate to apply analogously the criteria already developed in our jurisprudence, in which we have determined that the existence of such interest may arise because the affected individual is a public person or has acquired public notoriety, and in this second case, public notoriety may have been achieved through the professional activity they engage in, or by habitually disseminating facts and events from their private life, or they may have acquired circumstantial prominence by being involved in events that enjoy that public relevance (SSTC 99/2002, 6 C/ Jorge Juan, 6 www.aepd.es 28001 – Madrid sedeagpd.gob.es 9/11

of May, FJ 7, and 23/2010, of April 27, FJ 5). It is also possible that even if the affected party is not a public figure nor has acquired public notoriety, there may exist a public interest in accessing such information as it pertains to a matter of general interest (STC 216/2013, of December 19, FJ 6):

(...)

b) (...) Once the public status of the appellant is ruled out, it must be determined whether there is an interest in accessing the information based on the subject matter in question. The fact that the information relates to the current working life of the interested party is an element to consider, as highlighted by Google in its submissions, and as noted in the guidelines on the implementation of the STJUE Google Spain, from the Article 29 Working Party on data protection, which establish that “the information is more likely to be relevant if it relates to the current working life of the interested party.” However, this fact is not decisive because, as those same guidelines indicate, “it will largely depend on the nature of the work itself and the public's interest in accessing that information through a search by name” (commentary on criterion 5, page 17).

It is necessary to determine, first and foremost, whether access to what is published contributes to the formation of a free public opinion (STC 49/2001, of February 26, FJ 6), because what deserves special constitutional protection is the dissemination of ideas that contribute to that end and that facilitate citizens to freely form their opinions and reasonably participate in public affairs (STC 23/2010, of April 27, FJ 3). If such an interest exists, in any case, it would only extend to that communication whose knowledge is necessary for the real participation of citizens in collective life and that is not formally humiliating (STC 110/2000, of May 5, FJ 8).

(...)

(iii) Finally, it should be noted that the application of the criterion of public relevance must be more restrictive when it comes to access through a link in a search engine, insofar as even if the link obtained after a search aimed at the name and surname of that person is removed, such access can always be made through the website where the original information is published, or even through the search engine using search criteria other than the name and surname of the affected person.

In this regard, the Court of Justice of the European Union has already noted that "the result of the balancing of conflicting interests that must be carried out [...] may diverge depending on whether it concerns processing carried out by a search engine manager or by the publisher of this webpage, given that, on the one hand, the legitimate interests that justify these processes may be different, and, on the other hand, the consequences of these processes on the interested party, and, in particular, on their private life, are not necessarily the same."

"In effect, to the extent that the inclusion, in the list of results obtained after a search carried out based on a person's name, of a webpage and information contained therein relating to this person significantly facilitates the accessibility of that information to any internet user conducting a search about the interested party and can play a decisive role in the dissemination of this information."

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training, may constitute a greater interference in the fundamental right to respect for the private life of the interested party than the publication by the editor of this webpage" (CJEU Google Spain, § 86 and 87) (...)."

Finally, the aforementioned Constitutional Court ruling states regarding the time factor, in its foundation 5, section B), that "(...) Although such news about that criminal procedure may be current, and, consequently, may justify a superior public interest in accessing them, the current nature does not transfer to the opinions expressed about the appellant in the complaint portals that do not pertain to those criminal proceedings. (...)"

FIFTH: In the present case, according to documentation in the proceedings, the claimant requested the deletion of their personal data from the respondent, in relation to the URL referenced in Fact One, with the purpose of ensuring that their personal data is not linked to search results based on their name. The respondent replied, justifying the denial of the claim, considering that the data is relevant and of public interest and refers to information related to the professional activity clearly protected by the freedom of information.

It was verified that the content of the questioned URLs refers to completed selection processes (years 2012, 2013, and 2014), therefore it is considered that the personal data of the claimant accessible in the results shown by the search engine when searching for their name is excessive and inadequate due to the passage of time, in accordance with the provisions of Article 93 of the LOPDGDD.

The respondent states that they have re-examined the content of the web pages to which the disputed search results refer and have reconsidered their initial decision, proceeding accordingly to block the URLs requested by the claimant.

In this regard, the claimant points out that URLs 12, 13, 14, and 15 continue to appear among the search results.

This Agency has verified that, when conducting a search for the name of the claimant in the search engine, the questioned URLs do not appear among the search results.

Regarding the URLs that the claimant states still appear in the list of results when entering their name in the search engine, it should be noted that URL 12 is not among the claimed URLs and upon accessing its content, the name of the claimant does not appear; concerning URLs 13, 14, and 15, they do not appear in the list of results when entering the name in the search engine. Therefore, in the case analyzed here, it is established that the claimant exercised their right to deletion concerning the referenced URLs before the respondent and their request did not receive the legally required response.

Based on the above, considering that the present procedure aims to ensure that the guarantees and rights of the affected parties are duly restored, and given that the respondent during the processing of this procedure has proceeded to the de-indexing of the questioned URLs, consequently, with the new measures adopted by the respondent, it is appropriate to formally uphold the present claim, without the need for additional actions.

Having seen the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the claim made by Mr. A.A.A., against the entity GOOGLE LLC. However, it is not appropriate to issue a new certification by said entity, given that it has proceeded to the de-indexing of the questioned URLs during the processing of this procedure, without the need for additional actions by the responsible party.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to GOOGLE LLC.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. 1035-281122

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